

24STCV18329 24STCV18329

County: los-angeles

Division: Civil Law and Motion

Department: 529

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Case Number: 24STCV18329 Hearing Date: June 26, 2026 Dept: 529

IMAD AKIKI VS COSIC SECURITY SERVICES, INC., ET AL

MOTION

TO SET ASIDE DEFAULT JUDGMENT

Date of Hearing: June 26,

2026 Trial

Date: N/A

Department: 529 Case

No.: 24STCV18329

Moving

Party: Defendants Drazen Cosic

and Cosic Security Services, Inc.

Responding Party: Late

opposition by Plaintiff Akiki.

BACKGROUND

On July 24, 2024, Plaintiff Imad Akiki filed a complaint against Defendant Cosic Security Services, Inc., Drazen Cosic, and Albert Cosic for various violations of the Labor Code and Government Code along with wrongful termination in violation of public policy, intentional infliction of emotional distress, civil assault, civil battery, declaratory relief, and injunctive relief.

Default was entered against Defendants on January 21, 2025.

[TENTATIVE]

RULING

Defendants Drazen Cosic and Cosic Security Services, Inc.'s Motion to Set Aside Default Judgment is DENIED.

DISCUSSION

Defendants Drazen Cosic and Cosic Security Services, Inc. move this court for an order setting aside the default judgment entered against Defendant. Defendants makes the motion on the grounds that the default judgment was entered as a result of Defendant's mistake, inadvertence, surprise, or excusable neglect.

It is well established that Code of Civil Procedure section 473 is remedial, and its provisions to be liberally construed so as to dispose of cases upon their merits. (See, e.g., Laguna Village, Inc. v. Laborers' Internat. Union of North America (1983) 35 Cal.3d 174, 182; Taliaferro v. Taliaferro (1963) 217 Cal.App.2d 216, 220.) Code of Civil Procedure section 473(b) consists of two distinct parts: "a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right." (Minick v. City of Petaluma (2016) 3 Cal.App.5th 15, 25-26; Bailey v. Citibank, N.A. (2021) 66 Cal.App.5th 335, 348.)

Defendants argue they did not timely respond to the complaint because Defendant Cosic never received proper service of the summons and complaint. (Cosic Decl. ¶13.)

Initially, the court notes that Defendant Cosic Security Services, Inc. is a corporation and thus must be represented by counsel. The court cannot consider the motion for relief filed on behalf of this corporation because it is not represented by counsel. Accordingly, the motion for relief from default by Cosic Security Services, Inc. is denied.

As for Drazen Cosic's motion, plaintiff contends that it is untimely because not filed within 6 months of the entry of default. However, Drazen Cosic challenges the default on grounds that he was not properly served, rendering the default void and not

voidable (and not subject to the six-month limitation for bringing a motion to set aside.) Drazen Cosic's declaration merely states that he was not personally handed the documents. But service can be accomplished in many ways, including by substitute service, which is what occurred here. Drazen Cosic does not dispute that the papers were delivered to Vinko Cosic, that the Palmetto drive address is his residence, or that the document was mailed to the same address thereafter. Thus, Drazen Cosic does not satisfactorily establish that service was not accomplished or that the judgment is void.

Accordingly, the court denies the motion for relief.